

(f) subdividing land—

- (i) on which a heritage item is located or that is within a heritage conservation area, or
- (ii) on which an Aboriginal object is located or that is within an Aboriginal place of heritage significance.

(3) **When consent not required** However, development consent under this clause is not required if—

(a) the applicant has notified the consent authority of the proposed development and the consent authority has advised the applicant in writing before any work is carried out that it is satisfied that the proposed development—

- (i) is of a minor nature or is for the maintenance of the heritage item, Aboriginal object, Aboriginal place of heritage significance or archaeological site or a building, work, relic, tree or place within the heritage conservation area, and
- (ii) would not adversely affect the heritage significance of the heritage item, Aboriginal object, Aboriginal place, archaeological site or heritage conservation area, or

(b) the development is in a cemetery or burial ground and the proposed development—

- (i) is the creation of a new grave or monument, or excavation or disturbance of land for the purpose of conserving or repairing monuments or grave markers, and
- (ii) would not cause disturbance to human remains, relics, Aboriginal objects in the form of grave goods, or to an Aboriginal place of heritage significance, or

(c) the development is limited to the removal of a tree or other vegetation that the Council is satisfied is a risk to human life or property, or

(d) the development is exempt development.

(4) **Effect of proposed development on heritage significance** The consent authority must, before granting consent under this clause in respect of a heritage item or heritage conservation area, consider the effect of the proposed development on the heritage significance of the item or area concerned. This subclause applies regardless of whether a heritage management document is prepared under subclause (5) or a heritage conservation management plan is submitted under subclause (6).

(5) **Heritage assessment** The consent authority may, before granting consent to any development—

(a) on land on which a heritage item is located, or

(b) on land that is within a heritage conservation area, or

(c) on land that is within the vicinity of land referred to in paragraph (a) or (b),

require a heritage management document to be prepared that assesses the extent to which the carrying out of the proposed development would affect the heritage significance of the heritage item or heritage conservation area concerned.

- (6) **Heritage conservation management plans** The consent authority may require, after considering the heritage significance of a heritage item and the extent of change proposed to it, the submission of a heritage conservation management plan before granting consent under this clause.
- (7) **Archaeological sites** The consent authority must, before granting consent under this clause to the carrying out of development on an archaeological site (other than land listed on the State Heritage Register or to which an interim heritage order under the [Heritage Act 1977](#) applies)—
- (a) notify the Heritage Council of its intention to grant consent, and
 - (b) take into consideration any response received from the Heritage Council within 28 days after the notice is sent.
- (8) **Aboriginal places of heritage significance** The consent authority must, before granting consent under this clause to the carrying out of development in an Aboriginal place of heritage significance—
- (a) consider the effect of the proposed development on the heritage significance of the place and any Aboriginal object known or reasonably likely to be located at the place by means of an adequate investigation and assessment (which may involve consideration of a heritage impact statement), and
 - (b) notify the local Aboriginal communities, in writing or in such other manner as may be appropriate, about the application and take into consideration any response received within 28 days after the notice is sent.
- (9) **Demolition of nominated State heritage items** The consent authority must, before granting consent under this clause for the demolition of a nominated State heritage item—
- (a) notify the Heritage Council about the application, and
 - (b) take into consideration any response received from the Heritage Council within 28 days after the notice is sent.
- (10) **Conservation incentives** The consent authority may grant consent to development for any purpose of a building that is a heritage item or of the land on which such a building is erected, or for any purpose on an Aboriginal place of heritage significance,

even though development for that purpose would otherwise not be allowed by this Plan, if the consent authority is satisfied that—

- (a) the conservation of the heritage item or Aboriginal place of heritage significance is facilitated by the granting of consent, and
- (b) the proposed development is in accordance with a heritage management document that has been approved by the consent authority, and
- (c) the consent to the proposed development would require that all necessary conservation work identified in the heritage management document is carried out, and
- (d) the proposed development would not adversely affect the heritage significance of the heritage item, including its setting, or the heritage significance of the Aboriginal place of heritage significance, and
- (e) the proposed development would not have any significant adverse effect on the amenity of the surrounding area.

5.11 Bush fire hazard reduction

Bush fire hazard reduction work authorised by the [Rural Fires Act 1997](#) may be carried out on any land without development consent.

Note—

The [Rural Fires Act 1997](#) also makes provision relating to the carrying out of development on bush fire prone land.

5.12 Infrastructure development and use of existing buildings of the Crown

- (1) This Plan does not restrict or prohibit, or enable the restriction or prohibition of, the carrying out of any development, by or on behalf of a public authority, that is permitted to be carried out with or without development consent, or that is exempt development, under [State Environmental Planning Policy \(Transport and Infrastructure\) 2021](#), Chapter 2.
- (2) This Plan does not restrict or prohibit, or enable the restriction or prohibition of, the use of existing buildings of the Crown by the Crown.

5.13 Eco-tourist facilities

[Not applicable]

5.14 Siding Spring Observatory—maintaining dark sky

[Not adopted]

5.15 Defence communications facility

[Not adopted]

5.16 Subdivision of, or dwellings on, land in certain rural, residential or conservation zones

[Not applicable]

5.17 Artificial waterbodies in environmentally sensitive areas in areas of operation of irrigation corporations

[Not applicable]

5.18 Intensive livestock agriculture

[Not applicable]

5.19 Pond-based, tank-based and oyster aquaculture

(1) **Objectives** The objectives of this clause are as follows—

- (a) to encourage sustainable oyster, pond-based and tank-based aquaculture in the State, namely, aquaculture development that uses, conserves and enhances the community's resources so that the total quality of life now and in the future can be preserved and enhanced,
- (b) to set out the minimum site location and operational requirements for permissible pond-based and tank-based aquaculture development.

(2) **Pond-based or tank-based aquaculture—matters of which consent authority must be satisfied before granting consent** The consent authority must not grant development consent to carry out development for the purpose of pond-based aquaculture or tank-based aquaculture unless the consent authority is satisfied of the following—

- (a) that the development complies with the site location and operational requirements set out in Part 1 of Schedule 6 for the development,
- (b) in the case of—
 - (i) pond-based aquaculture in Zone RU5 Village, Zone RU6 Transition, Zone R1 General Residential, Zone R2 Low Density Residential, Zone R3 Medium Density Residential, Zone R4 High Density Residential, Zone R5 Large Lot Residential, Zone E1 Local Centre, Zone E2 Commercial Centre, Zone E3 Productivity Support, Zone E4 General Industrial, Zone E5 Heavy Industrial or Zone MU1 Mixed Use—that the development is for the purpose of small scale aquarium fish production, and
 - (ii) pond-based aquaculture in Zone C3 Environmental Management or Zone C4 Environmental Living—that the development is for the purpose of extensive

aquaculture, and

- (iii) tank-based aquaculture in Zone R1 General Residential, Zone R2 Low Density Residential, Zone R3 Medium Density Residential, Zone R4 High Density Residential, Zone R5 Large Lot Residential, Zone C3 Environmental Management or Zone C4 Environmental Living—that the development is for the purpose of small scale aquarium fish production, and
 - (iv) pond-based aquaculture or tank-based aquaculture in Zone W1 Natural Waterways, Zone W2 Recreational Waterways or Zone W3 Working Waterways—that the development will use waterways to source water.
- (3) The requirements set out in Part 1 of Schedule 6 are minimum requirements and do not limit the matters a consent authority is required to take into consideration under the Act or the conditions that it may impose on any development consent.
- (4) **Extensive pond-based aquaculture permitted without consent in certain zones**
Development for the purpose of pond-based aquaculture, that is also extensive aquaculture, may be carried out without development consent if—
 - (a) the development is carried out in Zone RU1 Primary Production, Zone RU2 Rural Landscape, Zone RU3 Forestry, Zone RU4 Primary Production Small Lots or Zone RU6 Transition, and
 - (b) the development complies with the site location requirements and operational requirements set out in Part 2 of Schedule 6.
- (5) **Oyster aquaculture—additional matters that consent authority must consider in determining a development application** In determining a development application for development for the purpose of oyster aquaculture, the consent authority must consider—
 - (a) any provisions of any aquaculture industry development plan that are relevant to the subject of the development application, and
 - (b) the *NSW Oyster Industry Sustainable Aquaculture Strategy*.
- (6) **Oyster aquaculture permitted without consent in priority oyster aquaculture areas**
Development for the purpose of oyster aquaculture may be carried out without development consent—
 - (a) on land that is wholly within a priority oyster aquaculture area, or
 - (b) on land that is partly within and partly outside a priority oyster aquaculture area, but only if the land outside the area is no more than 0.1 hectare in area.
- (7) **Definitions** In this clause—

aquaculture industry development plan means an aquaculture industry development plan published under Part 6 of the [Fisheries Management Act 1994](#).

extensive aquaculture has the same meaning as in the [Fisheries Management \(Aquaculture\) Regulation 2017](#).

NSW Oyster Industry Sustainable Aquaculture Strategy means the third edition of the publication of that title, as published in 2016 by the Department of Primary Industries (within the Department of Industry).

priority oyster aquaculture area means an area identified as a priority oyster aquaculture area on a map referred to in Chapter 5.3 of the *NSW Oyster Industry Sustainable Aquaculture Strategy*, being a map a copy of which is held in the head office of the Department of Primary Industries (within the Department of Industry) and published on that Department's website.

5.20 Standards that cannot be used to refuse consent—playing and performing music

- (1) The consent authority must not refuse consent to development in relation to licensed premises on the following grounds—
 - (a) the playing or performance of music, including the following—
 - (i) the genre of music played or performed, or
 - (ii) whether the music played or performed is live or amplified, or
 - (iii) whether the music played or performed is original music, or
 - (iv) the number of musicians or live entertainment acts playing or performing, or
 - (v) the type of instruments played,
 - (b) whether dancing occurs,
 - (c) the presence or use of a dance floor or another area ordinarily used for dancing,
 - (d) the direction in which a stage for players or performers faces,
 - (e) the decorations to be used, including, for example, mirror balls, or lighting used by players or performers.
- (2) The consent authority must not refuse consent to development in relation to licensed premises on the grounds of noise caused by the playing or performance of music, if the consent authority is satisfied the noise may be managed and minimised to an acceptable level.
- (3) In this clause—

licensed premises has the same meaning as in the [Liquor Act 2007](#).

5.21 Flood planning

- (1) The objectives of this clause are as follows—
 - (a) to minimise the flood risk to life and property associated with the use of land,
 - (b) to allow development on land that is compatible with the flood function and behaviour on the land, taking into account projected changes as a result of climate change,
 - (c) to avoid adverse or cumulative impacts on flood behaviour and the environment,
 - (d) to enable the safe occupation and efficient evacuation of people in the event of a flood.
- (2) Development consent must not be granted to development on land the consent authority considers to be within the flood planning area unless the consent authority is satisfied the development—
 - (a) is compatible with the flood function and behaviour on the land, and
 - (b) will not adversely affect flood behaviour in a way that results in detrimental increases in the potential flood affectation of other development or properties, and
 - (c) will not adversely affect the safe occupation and efficient evacuation of people or exceed the capacity of existing evacuation routes for the surrounding area in the event of a flood, and
 - (d) incorporates appropriate measures to manage risk to life in the event of a flood, and
 - (e) will not adversely affect the environment or cause avoidable erosion, siltation, destruction of riparian vegetation or a reduction in the stability of river banks or watercourses.
- (3) In deciding whether to grant development consent on land to which this clause applies, the consent authority must consider the following matters—
 - (a) the impact of the development on projected changes to flood behaviour as a result of climate change,
 - (b) the intended design and scale of buildings resulting from the development,
 - (c) whether the development incorporates measures to minimise the risk to life and ensure the safe evacuation of people in the event of a flood,
 - (d) the potential to modify, relocate or remove buildings resulting from development if the surrounding area is impacted by flooding or coastal erosion.

- (4) A word or expression used in this clause has the same meaning as it has in the *Considering Flooding in Land Use Planning Guideline* unless it is otherwise defined in this clause.

- (5) In this clause—

Considering Flooding in Land Use Planning Guideline means the *Considering Flooding in Land Use Planning Guideline* published on the Department's website on 14 July 2021.

flood planning area has the same meaning as it has in the *Flood Risk Management Manual*.

Flood Risk Management Manual means the *Flood Risk Management Manual*, ISBN 978-1-923076-17-4, published by the NSW Government in June 2023.

5.22 Special flood considerations

- (1) The objectives of this clause are as follows—

- (a) to enable the safe occupation and evacuation of people subject to flooding,
- (b) to ensure development on land is compatible with the land's flood behaviour in the event of a flood,
- (c) to avoid adverse or cumulative impacts on flood behaviour,
- (d) to protect the operational capacity of emergency response facilities and critical infrastructure during flood events,
- (e) to avoid adverse effects of hazardous development on the environment during flood events.

- (2) This clause applies to—

- (a) for sensitive and hazardous development—land between the flood planning area and the probable maximum flood, and
- (b) for development that is not sensitive and hazardous development—land the consent authority considers to be land that, in the event of a flood, may—
 - (i) cause a particular risk to life, and
 - (ii) require the evacuation of people or other safety considerations.

- (3) Development consent must not be granted to development on land to which this clause applies unless the consent authority has considered whether the development—

- (a) will affect the safe occupation and efficient evacuation of people in the event of a

flood, and

(b) incorporates appropriate measures to manage risk to life in the event of a flood, and

(c) will adversely affect the environment in the event of a flood.

(4) A word or expression used in this clause has the same meaning as it has in the Considering Flooding in Land Use Planning Guideline unless it is otherwise defined in this clause.

(5) In this clause—

Considering Flooding in Land Use Planning Guideline—see clause 5.21(5).

flood planning area—see clause 5.21(5).

Flood Risk Management Manual—see clause 5.21(5).

probable maximum flood has the same meaning as in the Flood Risk Management Manual.

sensitive and hazardous development means development for the following purposes—

- (a) boarding houses,
- (b) caravan parks,
- (c) correctional centres,
- (d) early education and care facilities,
- (e) eco-tourist facilities,
- (f) educational establishments,
- (g) emergency services facilities,
- (h) group homes,
- (i) hazardous industries,
- (j) hazardous storage establishments,
- (k) hospitals,
- (l) hostels,
- (m) information and education facilities,

- (n) respite day care centres,
- (o) seniors housing,
- (p) sewerage systems,
- (q) tourist and visitor accommodation,
- (r) water supply systems.

5.23 Public bushland

[Not adopted]

5.24 Farm stay accommodation

[Not adopted]

5.25 Farm gate premises

[Not adopted]

Part 6 Additional local provisions

6.1 Acid sulfate soils

- (1) The objective of this clause is to ensure that development does not disturb, expose or drain acid sulfate soils and cause environmental damage.
- (2) Development consent is required for the carrying out of works described in the table to this subclause on land shown on the [Acid Sulfate Soils Map](#) as being of the class specified for those works.

Class of land	Works
1	Any works.
2	Works below the natural ground surface. Works by which the watertable is likely to be lowered.
3	Works more than 1m below the natural ground surface. Works by which the watertable is likely to be lowered more than 1m below the natural ground surface.
4	Works more than 2m below the natural ground surface. Works by which the watertable is likely to be lowered more than 2m below the natural ground surface.

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Works within 500m of adjacent Class 1, 2, 3 or 4 land that is below 5m Australian Height Datum and by which the watertable is likely to be lowered below 1m Australian Height Datum on adjacent Class 1, 2, 3 or 4 land.

- (3) Development consent must not be granted under this clause for the carrying out of works unless an acid sulfate soils management plan has been prepared for the proposed works in accordance with the Acid Sulfate Soils Manual and has been provided to the consent authority.
- (4) Development consent is not required under this clause for the carrying out of works if—
 - (a) a preliminary assessment of the proposed works prepared in accordance with the Acid Sulfate Soils Manual indicates that an acid sulfate soils management plan is not required for the works, and
 - (b) the preliminary assessment has been provided to the consent authority and the consent authority has confirmed the assessment by notice in writing to the person proposing to carry out the works.
- (5) Development consent is not required under this clause for the carrying out of any of the following works by a public authority, including ancillary work such as excavation, construction of access ways or the supply of power—
 - (a) emergency work involving the repair or replacement of the works of the public authority required to be carried out urgently because the works—
 - (i) have been damaged, or
 - (ii) have ceased to function, or
 - (iii) pose a risk to the environment or to public health and safety,
 - (b) routine maintenance work, being the periodic inspection, cleaning, repair or replacement of the works of the public authority, other than work involving the disturbance of more than 1 tonne of soil,
 - (c) minor work, being work that costs less than \$20,000, other than drainage work.
- (6) Development consent is not required under this clause to carry out any works if—
 - (a) the works involve the disturbance of less than 1 tonne of soil, and
 - (b) the works are not likely to lower the watertable.

6.2 Earthworks

- (1) The objectives of this clause are as follows—
 - (a) to ensure earthworks for which development consent is required will not have a detrimental impact on environmental functions and processes, neighbouring uses, cultural or heritage items or features of the surrounding land,
 - (b) to allow earthworks of a minor nature without requiring separate development consent.
- (2) Development consent is required for earthworks unless—
 - (a) the work is exempt development under—
 - (i) this Plan, or
 - (ii) another applicable environmental planning instrument, or
 - (b) the work is ancillary to other development for which development consent has been granted.
- (3) In deciding whether to grant development consent for earthworks, the consent authority must consider the following matters—
 - (a) the likely disruption of, or any detrimental effect on, existing drainage patterns and soil stability in the locality,
 - (b) the effect of the development on the likely future use or redevelopment of the land,
 - (c) the quality of the fill or the soil to be excavated, or both,
 - (d) the effect of the development on the existing and likely amenity of adjoining properties,
 - (e) the source of any fill material and the destination of any excavated material,
 - (f) the likelihood of disturbing relics,
 - (g) the proximity to and potential for adverse impact on any watercourse, drinking water catchment or environmentally sensitive area.

Note—

The [National Parks and Wildlife Act 1974](#), particularly section 86, deals with disturbing or excavating land and Aboriginal objects.

6.3 Stormwater management

- (1) The objective of this clause is to minimise the impacts of urban stormwater on—

- (a) land to which this clause applies, and
 - (b) adjoining properties, and
 - (c) native bushland, and
 - (d) receiving waters.
- (2) This clause applies to all land in residential, employment and mixed use zones.
- (3) Development consent must not be granted to development on land to which this clause applies unless the consent authority is satisfied that the development—
- (a) is designed to maximise the use of water permeable surfaces on the land having regard to the soil characteristics affecting on-site infiltration of water, and
 - (b) includes, if practicable, on-site stormwater retention for use as an alternative supply to mains water, groundwater or river water, and
 - (c) avoids a significant adverse impact of stormwater runoff on adjoining properties, native bushland and receiving waters, or if an impact cannot be reasonably avoided, minimises and mitigates the impact.

6.4 Terrestrial biodiversity

- (1) The objective of this clause is to maintain terrestrial biodiversity by—
- (a) protecting native fauna and flora, and
 - (b) protecting the ecological processes necessary for the continued existence of native fauna and flora, and
 - (c) encouraging the conservation and recovery of native fauna and flora and their habitats.
- (2) This clause applies to land identified as “Biodiversity” on the [Natural Resource—Biodiversity Map](#).
- (3) In deciding whether to grant development consent for development on land to which this clause applies, the consent authority must consider—
- (a) whether the development is likely to have—
 - (i) an adverse impact on the condition, ecological value and significance of the fauna and flora on the land, and
 - (ii) an adverse impact on the importance of the vegetation on the land to the habitat and survival of native fauna, and
 - (iii) the potential to fragment, disturb or diminish the biodiversity structure,

function and composition of the land, and

(iv) an adverse impact on the habitat elements providing connectivity on the land, and

(b) appropriate measures to avoid, minimise or mitigate the impacts of the development.

(4) Development consent must not be granted to development on land to which this clause applies unless the consent authority is satisfied—

(a) the development is designed, sited and will be managed to avoid a significant adverse environmental impact, or

(b) if a significant adverse environmental impact cannot be reasonably avoided—the development is designed, sited and will be managed to minimise the impact.

6.5 Limited development on foreshore area

(1) The objective of this clause is to ensure development in the foreshore area will not—

(a) adversely impact on natural foreshore processes, or

(b) affect the significance and amenity of the area.

(2) This clause applies to land identified as “Foreshore Area” on the [Foreshore Building Line Map](#).

(3) Development consent must not be granted for development on land to which this clause applies except for the following purposes—

(a) the extension, alteration or rebuilding of an existing building wholly or partly in the foreshore area,

(b) boat sheds, cycleways, fences, jetties, retaining walls, slipways, swimming pools, walking trails, waterway access stairs, wharves, picnic facilities or other recreation facilities (outdoors).

(4) Development consent must not be granted for development on land to which this clause applies unless the consent authority is satisfied that—

(a) the development will contribute to achieving the objectives for the zone in which the land is located, and

(b) the appearance of a proposed structure, from both the waterway and adjacent foreshore areas, will be compatible with the surrounding area, and

(c) the development will not cause environmental harm, including—

(i) pollution or siltation of the waterway, or

- (ii) an adverse effect on surrounding uses, marine habitat, wetland areas, fauna and flora habitats, or
- (iii) an adverse effect on drainage patterns, and
- (d) the development will not cause congestion of, or generate conflicts between, people using open space areas or the waterway, and
- (e) opportunities to provide continuous public access along the foreshore and to the waterway will not be compromised, and
- (f) the historic, scientific, cultural, social, archaeological, architectural, natural or aesthetic significance of the land on which the development is to be carried out and of surrounding land will be maintained, and
- (g) for development for the alteration or rebuilding of an existing building wholly or partly in the foreshore area—the alteration or rebuilding will not have an adverse impact on the amenity or aesthetic appearance of the foreshore, and
- (h) sea level rise or change of flooding patterns as a result of climate change has been considered.

6.6 Development on the foreshore must ensure access

- (1) In deciding whether to grant development consent for development in the foreshore area, the consent authority must consider whether and to what extent the development would encourage the following—
 - (a) continuous public access to and along the foreshore through or adjacent to the development,
 - (b) public access to link with existing or proposed open space,
 - (c) public access to be secured by appropriate covenants, agreements or other instruments registered on the title to land,
 - (d) public access to be located above the mean high water mark,
 - (e) reinforcing the foreshore character and respect for existing environmental conditions.
- (2) Development consent must not be granted for development in the foreshore area unless the consent authority is satisfied that sea level rise or change of flooding patterns as a result of climate change have been considered.

6.7 Airspace operations

- (1) The objective of this clause is to protect airspace around airports.

- (2) Development consent must not be granted to development that is a controlled activity within the meaning of the [Airports Act 1996](#) of the Commonwealth, Part 12, Division 4, unless the applicant has obtained approval for the controlled activity under regulations made for the purposes of that Division.

Note—

Controlled activities include the construction or alteration of buildings or other structures that causes an intrusion into prescribed airspace, being generally airspace around airports. Controlled activities cannot be carried out without an approval granted under regulations made for the purposes of the [Airports Act 1996](#) of the Commonwealth, Part 12, Division 4.

6.8 Development in areas subject to aircraft noise

- (1) The objectives of this clause are as follows—
- (a) to prevent certain noise sensitive developments from being located near the Sydney (Kingsford Smith) Airport and the airport flight paths,
 - (b) to assist in minimising the impact of aircraft noise from the airport and the flight paths by requiring appropriate noise attenuation measures in noise sensitive buildings,
 - (c) to ensure land use and development near the airport do not hinder or have other adverse impacts on the ongoing, safe and efficient operation of the airport.
- (2) This clause applies to development—
- (a) on land—
 - (i) near the Kingsford Smith Airport, and
 - (ii) in an ANEF contour of 20 or greater, and
 - (b) the consent authority considers is likely to be adversely affected by aircraft noise, and
 - (c) involves any one or more of the following—
 - (i) the erection of a new building,
 - (ii) a substantial alteration or addition to an existing building,
 - (iii) an alteration or addition to a building that is required by a development consent to be compliant with AS 2021:2015,
 - (iv) the change of use of any part of a building to a centre-based child care facility, educational establishment, entertainment facility, health services facility, place of public worship, public administration building or residential accommodation,

- (v) the change of use of any part of a building on land that is in an ANEF contour of 25 or greater to business premises, a hostel, office premises, retail premises or tourist and visitor accommodation,
 - (vi) the change of use of any part of a building on land that is in an ANEF contour of 30 or greater to light industry.
- (3) In deciding whether to grant development consent to development to which this clause applies, the consent authority must—
 - (a) consider whether the development will result in an increase in the number of dwellings or people affected by aircraft noise, and
 - (b) consider the location of the development in relation to the criteria set out in Table 2.1 (Building Site Acceptability Based on ANEF Zones) in AS 2021:2015, and
 - (c) be satisfied the development will meet the indoor design sound levels shown in Table 3.3 (Indoor Design Sound Levels for Determination of Aircraft Noise Reduction) in AS 2021:2015.
- (4) In this clause—

ANEF contour means a noise exposure contour shown as an ANEF contour on the [Noise Exposure Forecast Contour Map](#) for the Kingsford Smith Airport prepared by the Commonwealth Department responsible for airports.

AS 2021:2015 means AS 2021:2015, *Acoustics—Aircraft noise intrusion—Building siting and construction*.

6.9 Design excellence

- (1) The objective of this clause is to ensure that development to which this clause applies exhibits the highest standard of architectural and urban design as part of the built environment.
- (2) This clause applies to development involving the construction of a new building, or external alterations to an existing building, that will result in a building that is equal to, or greater than, 14m in height.
- (3) Development consent must not be granted for development to which this clause applies unless the consent authority considers that the development exhibits design excellence.
- (4) In considering whether the development exhibits design excellence, the consent authority must have regard to the following matters—
 - (a) whether a high standard of architectural design, materials and detailing appropriate to the building type and location will be achieved,

- (b) whether the form and external appearance of the development will improve the quality and amenity of the public domain,
- (c) whether the development detrimentally impacts on view corridors and landmarks,
- (d) whether the development detrimentally impacts on land protected by solar access controls established in the relevant development control plan,
- (e) the requirements of the relevant development control plan,
- (f) how the development addresses the following matters—
 - (i) the suitability of the land for development,
 - (ii) existing and proposed uses and use mix,
 - (iii) heritage issues and streetscape constraints,
 - (iv) the relationship of the development with other existing or proposed development on the same site or on neighbouring sites in terms of separation, setbacks, amenity and urban form,
 - (v) bulk, massing and modulation of buildings,
 - (vi) street frontage heights,
 - (vii) environmental impacts, including sustainable design, overshadowing, wind and reflectivity and visual and acoustic privacy,
 - (viii) the achievement of the principles of ecologically sustainable development,
 - (ix) pedestrian, cycle, vehicular and service access, circulation and requirements, including the permeability of any pedestrian network,
 - (x) the impact on, and proposed improvements to, the public domain, including landscape design,
 - (xi) the relationship of the development with the street and building frontage.

(5) In this clause—

relevant development control plan means one of the following development control plans, as in force on the commencement of this clause, that applies to the land—

- (a) *Inner West Comprehensive Development Control Plan 2016*,
- (b) *Leichhardt Development Control Plan 2013*,
- (c) *Marrickville Development Control Plan 2011*.

6.10 Location of restricted premises and sex services premises

- (1) The objective of this clause is to minimise land use conflicts and adverse amenity impact by providing a reasonable level of separation between restricted premises, sex services premises, specified land uses and places regularly frequented by children.
- (2) Development consent must not be granted for the purposes of restricted premises or sex services premises unless, when measured from the boundary of the lot on which the premises will be used, the development will be located—
 - (a) more than 200m from land in a residential zone or Zone RE1 Public Recreation, and
 - (b) more than 200m from a place of public worship, hospital, school, centre-based child care facility, community facility or recreation area, and
 - (c) more than 50m from a railway station entrance, bus stop, taxi rank, ferry terminal or similar public utility undertaking.
- (3) In deciding whether to grant development consent to development for the purposes of restricted premises or sex services premises, the consent authority must consider the following—
 - (a) whether the operation of the restricted premises or sex services premises will be likely to cause a disturbance in the neighbourhood because of the size, location, hours of operation, clients or employees, or other people working in the premises,
 - (b) whether the operation of the restricted premises or sex services premises will be likely to interfere with the amenity of the neighbourhood,
 - (c) whether the operation of the restricted premises or sex services premises will be likely to cause a disturbance in the neighbourhood, taking into account the number of sex services premises already operating in the neighbourhood and involving similar hours of operation,
 - (d) the impact of the development and the hours of operation on a place likely to be regularly frequented by children for educational, recreational or cultural activities that can be viewed from the development,
 - (e) the cumulative impact of the number of sex services premises operating in the neighbourhood.

6.11 Use of existing non-residential buildings in residential zones

- (1) The objective of this clause is to provide for the adaptive reuse of existing buildings for purposes other than residential accommodation.
- (2) This clause applies to land in the following zones—

- (a) Zone R1 General Residential,
 - (b) Zone R2 Low Density Residential,
 - (c) Zone R3 Medium Density Residential,
 - (d) Zone R4 High Density Residential.
- (3) Development for the purposes of business premises, office premises, restaurants or cafes, shops, small bars or take away food and drink premises is permitted with development consent if—
- (a) the development involves a building constructed, wholly or partly, for a purpose other than residential accommodation before the commencement of this Plan, and
 - (b) the consent authority is satisfied of the following—
 - (i) the development will not adversely affect the amenity of the surrounding area,
 - (ii) the development will retain the form and fabric of the architectural features of the existing building,
 - (iii) the building is suitable for adaptive reuse,
 - (iv) the modification of the footprint and facade of the building will be minimal,
 - (v) the gross floor area of the part of the building used for the purposes of restaurants or cafes, small bars or take away food and drink premises will be less than 80m².

6.12 Adaptive reuse of existing buildings for dwellings in residential zones

- (1) The objectives of this clause are as follows—
- (a) to provide for the adaptive reuse of existing buildings as dwellings,
 - (b) to retain buildings contributing to the streetscape and character of Inner West,
 - (c) to provide satisfactory amenity for future residents of the area,
 - (d) to ensure development does not adversely affect the quality or amenity of existing buildings in the area.
- (2) This clause applies to a building lawfully constructed for a purpose other than residential accommodation in the following zones—
- (a) Zone R1 General Residential,
 - (b) Zone R2 Low Density Residential,
 - (c) Zone R3 Medium Density Residential,

- (d) Zone R4 High Density Residential.
- (3) Development consent must not be granted to a change of use to the following—
 - (a) multi dwelling housing on land other than in Zone R2 Low Density Residential,
 - (b) residential flat buildings on land other than land in Zone R2 Low Density Residential or Zone R3 Medium Density Residential.
- (4) Development consent must not be granted to a change of use to residential accommodation of a building on land to which this clause applies unless the consent authority is satisfied—
 - (a) the development will not adversely affect the streetscape, character or amenity of the surrounding area, and
 - (b) the development will retain the form, significant fabric and features of the architectural or historic features of the existing building, and
 - (c) any increase in the floor space ratio will be contained in the envelope of the existing building, and
 - (d) the building was constructed before the commencement of this Plan.
- (5) The maximum building height and maximum floor space ratio shown for the land on the [Height of Buildings Map](#) or the [Floor Space Ratio Map](#) do not apply to a building to which this clause applies.

6.13 Residential accommodation in Zones E1, E2 and MU1

- (1) The objective of this clause is to control the location of residential accommodation permitted in the zones to which this clause applies to support the vitality of local centres.
- (2) This clause applies to land in the following zones—
 - (a) Zone E1 Local Centre,
 - (b) Zone E2 Commercial Centre,
 - (c) Zone MU1 Mixed Use.
- (3) Development consent must not be granted to development for the purposes of residential accommodation on land to which this clause applies unless the consent authority is satisfied the building—
 - (a) is mixed use development, and
 - (b) will have an active street frontage, and

- (c) is compatible with the desired character of the area in relation to its bulk, form, uses and scale.

6.14 Diverse housing

- (1) The objective of this clause is to ensure the provision of a mix of dwelling types in residential flat buildings and mixed use development that includes shop top housing.
- (2) This clause applies to the following development involving at least 4 dwellings on land identified as “Area 1” on the [Key Sites Map](#)—
 - (a) development for the purposes of residential flat buildings,
 - (b) mixed use development that includes shop top housing.
- (3) Development consent must not be granted to development to which this clause applies unless—
 - (a) at least 25% of the dwellings will be—
 - (i) studio dwellings, or
 - (ii) dwellings containing only 1 bedroom, and
 - (b) no more than 30% of the dwellings will be dwellings containing at least 3 bedrooms.

6.15 Development control plans for certain development

- (1) The objective of this clause is to ensure certain development occurs in a logical and cost-effective way after a development control plan including specific controls has been prepared.
- (2) This clause applies to land identified as “Area 1” on the [Key Sites Map](#) if—
 - (a) the land has an area of at least 3,000m² or a water frontage of at least 20m, and
 - (b) the development involves—
 - (i) the erection of a building,
 - (ii) an increase of more than 5% in the gross floor area of an existing building, and
 - (iii) alterations to at least 75% of the facade of an existing building fronting a street, and
 - (iv) more than 75% of the site coverage of existing buildings on the land.
- (3) Development consent must not be granted to development to which this clause applies unless a development control plan providing for detailed development controls has been prepared for the land.

- (4) The development control plan must provide for the following—
- (a) the compatibility of the development with the desired character of the area,
 - (b) whether the form and external appearance of the development will improve the quality and amenity of the public domain,
 - (c) whether the development has an adverse impact on view corridors,
 - (d) the suitability of the site for the development,
 - (e) the existing and proposed mix of land uses,
 - (f) cultural, heritage and archaeological issues,
 - (g) streetscape constraints,
 - (h) the height, bulk, scale, massing and modulation of buildings,
 - (i) the heights of buildings with street frontages,
 - (j) environmental constraints, including contamination and acid sulfate soils,
 - (k) environmental impacts, including overshadowing, wind and reflectivity,
 - (l) whether the development incorporates the principles of ecologically sustainable development,
 - (m) overall transport hierarchy showing the major circulation routes and connections to achieve a simple and safe movement system for private vehicles, with particular regard to public transport, pedestrians and cyclists,
 - (n) the development's relationship and integration with existing and proposed public transport facilities,
 - (o) the overall landscaping of the site,
 - (p) stormwater management.
- (5) Subclause (3) does not apply to the following development—
- (a) subdivision for the purposes of a realignment of boundaries that does not create additional lots, or
 - (b) subdivision of land if at least 1 resulting lot will be reserved or dedicated for public open space, public roads or another public or environment protection purpose, or
 - (c) subdivision of land in a zone in which the erection of structures is prohibited.
- (6) Subclause (3) does not apply if the consent authority is satisfied—

- (a) a development control plan would be unreasonable or unnecessary in the circumstances, or
 - (b) the development is of a minor nature and is consistent with the objectives of the zone in which the land is located, or
 - (c) the development involves only alterations or additions to an existing building that do not—
 - (i) significantly increase the height or gross floor area of the building, or
 - (ii) have significant adverse impacts on adjoining buildings or the public domain, or
 - (iii) significantly alter any aspect of the building when viewed from a public place.
- (7) This clause does not apply to development on land identified as “Area 15” or “Area 18” on the [Key Sites Map](#).

6.16 Development of land at 141 and 159 Allen Street, Leichhardt

- (1) The objective of this clause is to specify controls for different maximum heights and minimum setbacks for buildings on the land without adversely affecting the streetscape, character, amenity or solar access of surrounding land.
- (2) This clause applies to the following land—
 - (a) Lot 1, DP 632522, 141 Allen Street, Leichhardt, identified as “Area 3” on the [Key Sites Map](#),
 - (b) Lot X, DP 381373, 159 Allen Street, Leichhardt, identified as “Area 4” on the [Key Sites Map](#).
- (3) Development consent must not be granted to development on land identified as “Area 3” on the [Key Sites Map](#) unless the consent authority is satisfied each building will—
 - (a) be set back at least—
 - (i) 3.5m from the Allen Street and Flood Street boundaries, and
 - (ii) 10m from the northern site boundary, and
 - (iii) 11m from that part of the western site boundary that is north of “Area 4”, and
 - (b) not have more than—
 - (i) 3 storeys, or
 - (ii) 4 storeys—if the building is adjacent to Allen Street, Flood Street, the northern site boundary or that part of the western boundary that is north of Area 4 (the

4 boundaries), the highest storey of the building is set back at least 6m from any building wall that faces one or more of the 4 boundaries and any such building wall does not exceed 3 storeys in height, or

- (iii) 6 storeys—if the building is not adjacent to Allen Street, Flood Street or the northern site boundary.
- (4) Development consent must not be granted to development on land identified as “Area 4” on the [Key Sites Map](#) unless the consent authority is satisfied each building will—
 - (a) be set back at least—
 - (i) 3.5m from the Allen Street boundary, and
 - (ii) 6m from the western site boundary, and
 - (b) not have more than—
 - (i) 3 storeys, or
 - (ii) 4 storeys—if the building has street frontage to Allen Street, the highest storey of the building is set back at least 6m from any building wall that faces Allen Street or the western site boundary and any such building wall does not exceed 3 storeys in height, or
 - (iii) 4 storeys—if the building does not have street frontage to Allen Street, or
 - (iv) 5 storeys—if the building does not have street frontage to Allen Street, the highest storey of the building is set back at least 6m from any building wall that does not exceed 4 storeys in height and any such building wall is on the western side of the building.

Note—

For this clause—

3 storeys is approximately 9.3m.

4 storeys is approximately 12.4m.

5 storeys is approximately 15.5m.

6 storeys is approximately 18.6m.

6.17 Development of land at 168 Norton Street, Leichhardt

- (1) The objective of this clause is to enable seniors housing with minimal adverse impacts.
- (2) This clause applies to the following land at 168 Norton Street, Leichhardt, identified as “Area 5” on the [Key Sites Map](#)—

- (a) Lots 1 and 2, DP 1119151,
 - (b) Lot 1, DP 963000,
 - (c) Lot 5, DP 1112635,
 - (d) Lots 3 and 4, Section 3, DP 328.
- (3) The maximum building height for development for the purposes of seniors housing involving only a group of self-contained dwellings on land to which this clause applies is RL 50.4, if the development does not exceed 5 storeys in height.
- (4) The maximum floor space ratio for development for the purposes of seniors housing involving only a group of self-contained dwellings on land to which this clause applies is 3:1, if the consent authority is satisfied that at least 15% of the self-contained dwellings for the accommodation of residents in the development will be set aside as affordable housing.
- (5) In this clause—
- affordable housing** means a dwelling for the accommodation of a resident whose household has an income within the following ranges in [State Environmental Planning Policy \(Housing\) 2021](#), section 13—
- (a) very low income household,
 - (b) low income household,
 - (c) moderate income household.

6.18 Development of land at 101-103 Lilyfield Road, Lilyfield

- (1) This clause applies to Lot 1, DP 432612, 101-103 Lilyfield Road, Lilyfield, identified as “Area 6” on the [Key Sites Map](#).
- (2) Development consent must not be granted to development for the purposes of restaurants or cafes or takeaway food and drink premises on land to which this clause applies unless the consent authority is satisfied that the total gross floor area of the part of a building used for either or both of those purposes will not exceed 50m².

6.19 Development of land at 17 Marion Street, Leichhardt

- (1) The objective of this clause is to enable seniors housing with minimal adverse impacts.
- (2) This clause applies to Lots 21, 22, 24 and 25, Section 1, DP 328 and Lots A and B, DP 377714, 17 Marion Street, Leichhardt, identified as “Area 7” on the [Key Sites Map](#).
- (3) The maximum building height for development for the purposes of seniors housing on

land to which this clause applies is RL 57.50, if the consent authority is satisfied that development consent could be granted to the development without reliance on the relevant bonus floor space provisions.

- (4) The maximum floor space ratio for development for the purposes of seniors housing on land to which this clause applies is 2:1, if the consent authority is satisfied that—
 - (a) at least 15% of the self-contained dwellings for the accommodation of residents in the development will be set aside as affordable housing, and
 - (b) development consent could be granted to the development without reliance on the relevant bonus floor space provisions.
- (5) In this clause—

affordable housing means a dwelling for the accommodation of a resident whose household has an income within the following ranges in [State Environmental Planning Policy \(Housing\) 2021](#), section 13—

- (a) very low income household,
- (b) low income household,
- (c) moderate income household.

relevant bonus floor space provisions means the requirements of [State Environmental Planning Policy \(Housing\) 2021](#), section 87.

6.20 Development on land in Haberfield Heritage Conservation Area

- (1) The objective of this clause is to maintain the single storey appearance of dwellings in the Haberfield Heritage Conservation Area.
- (2) This clause applies to land identified as “C54” on the [Heritage Map](#).
- (3) Development consent must not be granted to development for the purposes of dwelling houses on land to which this clause applies unless the consent authority is satisfied that—
 - (a) if the development involves an existing dwelling, or alterations or additions to an existing building—
 - (i) development above the existing ground floor level will not exceed the development contained within the existing roof space, and
 - (ii) development below the existing ground floor level will not exceed 25% of the gross floor area of the existing ground floor, and
 - (b) the development will not involve excavation in excess of 3m below the existing ground floor, and

- (c) the development will not involve the installation of dormer or gable windows, and
- (d) at least 50% of the site will be landscaped area.

6.21 Business and office premises in Zones E3 and E4

- (1) The objective of this clause is to promote certain types of business and office premises in Zone E3 Productivity Support and Zone E4 General Industrial.
- (2) This clause applies to land in Zone E3 Productivity Support and Zone E4 General Industrial and identified as “Area 19” on the [Key Sites Map](#).
- (3) Development consent must not be granted to development for the purposes of business premises or office premises on land to which this clause applies unless the consent authority is satisfied that the development will be used for creative purposes, including the following—
 - (a) media,
 - (b) advertising,
 - (c) fine arts and craft,
 - (d) design,
 - (e) film and television,
 - (f) music,
 - (g) publishing,
 - (h) performing arts,
 - (i) cultural heritage institutions.

6.22 Dwellings and residential flat buildings in Zone E3

- (1) The objective of this clause is to provide for limited residential development associated with non-residential uses permitted in Zone E3 Productivity Support, including small scale live-work enterprises, to—
 - (a) assist in the revitalisation of employment areas, and
 - (b) provide a transition between adjoining land use zones.
- (2) This clause applies to land in Zone E3 Productivity Support and identified as “Area 20” on the [Key Sites Map](#).
- (3) Development consent must not be granted to development for the purposes of dwellings or residential flat buildings on land to which this clause applies unless the

consent authority is satisfied that—

- (a) the development is part of mixed use development that includes a non-residential use permitted in Zone E3 Productivity Support, and
- (b) no part of the ground floor of the building that fronts a street will be used for residential purposes, excluding access, car parking and waste storage, and
- (c) not less than 60% of the total gross floor area of the building will be used for non-residential purposes, and
- (d) for development for the purposes of dwellings—the dwelling will be on the same lot of land as a non-residential use, including a lot in a strata plan or community title scheme.

(4) This clause does not apply to Lot 11, DP 499846, 1-5 Chester Street, Annandale.

6.23 Residential accommodation as part of mixed use development in Zone E3

(1) The objective of this clause is to—

- (a) provide for limited residential development in Zone E3 Productivity Support, and
- (b) ensure an appropriate proportion of residential accommodation as part of mixed use development on that land.

(2) This clause applies to land identified as “Area 8”, “Area 9”, “Area 10”, “Area 11” and “Area 12” on the [Key Sites Map](#).

(3) Development consent for the purposes of residential accommodation must not be granted to development on land to which this clause applies, unless the development is part of mixed use development.

(4) Development consent must not be granted to development for the purposes of residential accommodation on land to which this clause applies unless the consent authority is satisfied that—

- (a) no part of the ground floor of the building that fronts a street will be used for residential purposes, excluding access, car parking and waste storage, and
- (b) the percentage of the total gross floor area of the building that will be used for non-residential purposes is not less than the following—
 - (i) 20% on land identified as “Area 8” on the [Key Sites Map](#),
 - (ii) 40% on land identified as “Area 9” or “Area 10” on the [Key Sites Map](#),
 - (iii) 70% on land identified as “Area 11” on the [Key Sites Map](#),
 - (iv) 30% on land identified as “Area 12” on the [Key Sites Map](#).

6.24 Development of land at 1-5 Chester Street, Annandale

- (1) The objective of this clause is to encourage the commercial, education, health and cultural sectors in Annandale.
- (2) This clause applies to land at Lot 11, DP 499846, 1-5 Chester Street, Annandale, identified as “Area 2” on the [Key Sites Map](#).
- (3) Development consent must not be granted for the subdivision of land to which this clause applies.
- (4) A building on land to which this clause applies—
 - (a) must not have a building height that exceeds 17m, and
 - (b) must have 5 or fewer storeys.
- (5) Development consent must not be granted to development on land to which this clause applies that results in a building that has a maximum floor space ratio of 2:1 unless the consent authority is satisfied that—
 - (a) the building will include development for the purposes of—
 - (i) business premises or light industries for the biomedical, arts, technology, production or design sectors, and
 - (ii) boarding houses for student accommodation, and
 - (b) at least 980m² of the gross floor area of the building will be used for the purposes referred to in paragraph (a)(i), and
 - (c) no more than 1,635m² of the gross floor area of the building will be used for the purposes referred to in paragraph (a)(ii), and
 - (d) the boarding house will be managed by an onsite boarding house manager, and
 - (e) the development will not have a significant adverse impact on the amenity of the neighbourhood, and
 - (f) the development will include the necessary design and acoustic measures to ensure that the following uses do not have a significant adverse impact on the amenity of future residents of the development—
 - (i) business premises and light industries within the development,
 - (ii) existing industrial uses on land surrounding the development, and
 - (g) the development will include a 6m wide pedestrian and cycle path with landscaping adjacent to Johnstons Creek, and

- (h) the development will not result in a significant increase to the amount of vehicular traffic in the area, including on Chester Street, Chester Street West, Susan Street, Taylor Street and Pymont Bridge Road, and
- (i) the development will incorporate environmentally sustainable design principles, including measures to minimise the consumption of energy and water, and
- (j) the development will provide active frontages on Chester Street and Johnstons Creek.

6.25 Development of land at 469-483 Balmain Road, Lilyfield

- (1) The objective of this clause is to ensure the ongoing provision of employment, service and creative enterprise opportunities on the land.
- (2) This clause applies to Lot 2, DP 1015843, 469-483 Balmain Road, Lilyfield, identified as "Area 15" on the [Key Sites Map](#).
- (3) Development consent must not be granted to mixed use development on land to which this clause applies that includes a residential flat building unless—
 - (a) the consent authority is satisfied of the following—
 - (i) at least 6,000m² of the total gross floor area will be set aside for employment uses, and
 - (ii) at least 1,200m² of the 6,000m² set aside for employment uses will be used for creative purposes, and
 - (iii) the development provides for the adaptive reuse of existing buildings on the land, as far as is practicable, and
 - (iv) at least 5% of the gross floor area that is to be used for the purposes of residential accommodation will be used for affordable housing, and
 - (b) a development control plan that provides for the matters specified in subclause (4) has been prepared for or applies to the land.
- (4) The development control plan must provide for the following—
 - (a) design principles drawn from an analysis of the site and its context,
 - (b) buildings to be retained in, and incorporated into, future mixed use development,
 - (c) distribution of land uses, including the function and landscaping of open space,
 - (d) building envelopes and built form controls, including the following—
 - (i) bulk, massing and modulation of buildings,

- (ii) setbacks to the ground floor and upper storeys,
 - (iii) specified building storeys,
 - (e) housing mixes, including affordable and adaptable housing,
 - (f) vehicle access arrangements,
 - (g) encouraging sustainable transport, including increased use of public transport, walking and cycling, and appropriate car parking,
 - (h) improvements to the public domain and opportunities for its passive surveillance,
 - (i) the application of the principles of ecologically sustainable development,
 - (j) environmental impacts, including overshadowing and solar access and visual and acoustic privacy,
 - (k) measures to mitigate land use conflict between the residential and employment uses of the mixed use development,
 - (l) measures to mitigate land use conflict between residential uses of future development and the employment uses surrounding the site, including light industrial uses.
- (5) Subclause (3)(b) does not apply to development of a minor nature if the consent authority is satisfied the development is consistent with the objectives of the zone in which the land is located.
- (6) Development consent must not be granted unless the consent authority is satisfied that—
- (a) for at least 30 years from the date of the issue of the occupation certificate—
 - (i) the accommodation proposed to be used for affordable housing will be used for affordable housing, and
 - (ii) the accommodation that is used for affordable housing will be managed by a registered community housing provider, and
 - (b) before the date of the issue of the occupation certificate, a restriction will be registered against the title of the land in accordance with the [Conveyancing Act 1919](#), section 88E that will ensure that the requirements of paragraph (a) are met.
- (7) Subclause (6) does not apply to development on land owned by a public authority or to a development application made by, or on behalf of, a public authority or registered community housing provider.
- (8) Words used in this clause have the same meaning as in [State Environmental Planning](#)

Policy (Housing) 2021 unless otherwise defined in this Plan.

(9) In this clause—

creative purposes includes media, advertising, fine arts and craft, design, film and television, music, publishing, performing arts, cultural heritage institutions, community facilities or other related purposes, but does not include business premises or office premises.

employment uses do not include home businesses, home industries, home occupations, residential accommodation or tourist and visitor accommodation.

6.26 Development at 287-309 Trafalgar Street, Petersham

- (1) This clause applies to Lot 1, DP 1208130 and Lot 10, DP 1004198, 287-309 Trafalgar Street, Petersham, identified as “46” on the [Additional Permitted Use Map](#).
- (2) Development for the purposes of registered clubs on land to which this clause applies is permitted with development consent.
- (3) For the purposes of calculating the floor space ratio of development on land to which this clause applies, car parking, including access to that parking, that is provided on the land for use in association with a registered club, up to a maximum of 150 car parking spaces, is not to be included in the gross floor area.

6.27 50-52 Edith Street, 67 and 73-83 Mary Street and 43 Roberts Street, St Peters

- (1) The objectives of this clause are—
 - (a) to ensure the ongoing provision of employment and service opportunities on the subject land, and
 - (b) to ensure that development on the subject land will not have a detrimental impact on the amenity, character and environmental quality of the surrounding area.
- (2) This clause applies to Lot 100, DP 1283113, 50-52 Edith Street, 67 and 73-83 Mary Street and 43 Roberts Street, St Peters, identified as “Area 16” on the [Key Sites Map](#) (the **subject land**).
- (3) Development consent must not be granted to development that results in more than 50% of the gross floor area of all buildings on the subject land being used for the following purposes—
 - (a) home businesses,
 - (b) home industries,
 - (c) home occupations,

- (d) residential accommodation,
 - (e) tourist and visitor accommodation.
- (4) Development consent must not be granted to development that results in a building on part of the subject land exceeding the maximum height shown for that part on the [Height of Buildings Map](#) unless—
- (a) the development is within 1m of a part of the subject land that is subject, under clause 4.3, to a greater maximum building height, and
 - (b) the development does not result in that greater maximum building height being exceeded, and
 - (c) the development does not result in unreasonable massing or amenity impacts to the surrounding area.
- (5) Development consent must not be granted to development on the subject land unless a development control plan that provides for the matters specified in subclause (6) applies to the land.
- (6) The development control plan must provide for the following—
- (a) design principles drawn from an analysis of the site and its context,
 - (b) buildings to be retained in, and incorporated into, future mixed use development,
 - (c) distribution of land uses, including the function and landscaping of open space,
 - (d) building envelopes and built form controls, including—
 - (i) bulk, massing and modulation of buildings, and
 - (ii) specified building storeys,
 - (e) housing mixes, including affordable and adaptable housing,
 - (f) vehicle access arrangements,
 - (g) encouraging sustainable transport, including increased use of public transport, walking and cycling, and appropriate car parking,
 - (h) improvements to the public domain,
 - (i) the application of the principles of ecologically sustainable development,
 - (j) environmental impacts, including overshadowing and solar access and visual and acoustic privacy,
 - (k) the mitigation of aircraft noise, including through building design and the use of

appropriate building materials.

- (7) Subclause (5) does not apply to development of a minor nature if the consent authority is satisfied the development is consistent with the objectives of the zone in which the land is located.

6.28, 6.29 (Repealed)

6.30 Development of land at 36 Lonsdale Street and 64-70 Brenan Street, Lilyfield

- (1) This clause applies to the following land in Lilyfield, identified as “Area 17” on the [Key Sites Map](#)—
- (a) Lots 2-4, DP 1257743, 36 Lonsdale Street,
 - (b) Lots 1 and 2, DP 529451, Lot 22, DP 977323 and Lot 1, DP 1057904, 64-70 Brenan Street.
- (2) If a development control plan that complies with subclause (3) has been prepared for the land—
- (a) the maximum height of a building is RL 33.2, and
 - (b) the maximum floor space ratio for a building is 1.5:1.
- (3) The development control plan must provide for the following—
- (a) the objectives for development on the land,
 - (b) building envelopes and built form controls, including the following—
 - (i) the bulk, massing and modulation of buildings,
 - (ii) setbacks to the ground floor and upper storeys,
 - (iii) specified building storeys,
 - (c) the heights of buildings that will provide an appropriate transition in built form to the surrounding low density development,
 - (d) encouraging sustainable transport, including increased use of public transport, walking and cycling, and appropriate car parking,
 - (e) environmental impacts, including overshadowing and solar access and visual and acoustic privacy,
 - (f) the application of the principles of ecologically sustainable development.
- (4) Development consent must not be granted to development that will result in a dwelling on the ground floor of a building if a wall of the dwelling faces the City West Link.

6.31 Development on certain land at Victoria Road, Marrickville

- (1) The objective of this clause is to ensure that development on land at Victoria Road, Marrickville occurs in accordance with a development control plan to manage the transition from industrial land uses to residential and commercial land uses.
- (2) This clause applies to land identified as “Area 13” on the [Key Sites Map](#).
- (3) Development consent must not be granted for development on land to which this clause applies unless a development control plan that provides for the following matters has been prepared for the land—
 - (a) the upgrading of road networks and intersections on the land and surrounding areas,
 - (b) transport connections on the land and within surrounding areas, including the layout of laneways, bicycle routes and other connections,
 - (c) the protection of items and areas of heritage significance,
 - (d) the management and mitigation of the impact of existing industrial development in the surrounding areas on the amenity of proposed residential development on the land,
 - (e) the impacts of the development on the surrounding residential and industrial areas and the amenity of the neighbourhood,
 - (f) the mitigation of aircraft noise, including through building design and the use of appropriate building materials,
 - (g) the management of drainage and flood risks,
 - (h) a network of active and passive recreation areas,
 - (i) the protection of public open spaces, including from overshadowing.
- (4) Subclause (3) does not apply to the following development—
 - (a) subdivision for the purposes of a realignment of boundaries that does not create additional lots,
 - (b) subdivision of land if at least 1 resulting lot will be reserved or dedicated for public open space, public roads or another public or environment protection purpose, or
 - (c) subdivision of land in a zone in which the erection of structures is prohibited,
 - (d) development of a minor nature, if the consent authority is satisfied the development is consistent with the objectives of the zone in which the land is located.

6.32 Special entertainment precinct

- (1) This clause applies to land identified as “Inner West Special Entertainment Precinct” on the [Special Entertainment Precinct Map](#).
- (2) For the [Local Government Act 1993](#), section 202, a special entertainment precinct is established on the land to which this clause applies.

6.33 Affordable housing

- (1) This clause applies to development on land identified as “Stage 1 Bays West Precinct” on the [Land Application Map](#) involving—
 - (a) the erection of a new building with a gross floor area of more than 200m², or
 - (b) alterations to an existing building resulting in the creation of more than 200m² of gross floor area intended to be used for residential accommodation, or
 - (c) the demolition of existing floor area and the subsequent creation, whether for the same or a different purpose, of more than 100m² of gross floor area.
- (2) Subclause (1) applies—
 - (a) whether the floor area was in existence before, or is created after, the commencement of this clause, and
 - (b) whether or not the floor area replaces an existing area.
- (3) The consent authority may, when granting development consent to development to which this clause applies, impose a condition requiring an affordable housing levy contribution equivalent to 7.5% of the relevant floor area of the building.
- (4) A condition imposed under this clause must require a person to satisfy the contribution by way of a monetary contribution paid to the Council.
- (5) A monetary contribution must be calculated in accordance with the *Bays West Strategy Implementation—Affordable Housing Contribution Program* adopted by the Department on 9 December 2022.
- (6) The demolition of a building, or a change in the use of land, does not give rise to a claim for a refund of a contribution.
- (7) In this clause—

relevant floor area, of a building, means the gross floor area of the building used for residential purposes, excluding the floor area used—

 - (a) to provide affordable housing or public housing, or
 - (b) used for community facilities, schools, public roads or public utility undertakings.

6.34 Development of certain land at Alma Avenue and Stanmore Road, Stanmore and Tupper Street, Enmore

- (1) This clause applies to land identified as “Area L” on the [Key Sites Map](#).
- (2) Development consent must not be granted for development on land to which this clause applies unless the consent authority is satisfied—
 - (a) a development control plan that provides for the matters specified in subclause (3) has been prepared for the land, and
 - (b) the development will not result in a significant increase in vehicular traffic in the surrounding area, particularly on—
 - (i) Alma Avenue, Newington Road or Stanmore Road, Stanmore, or
 - (ii) Enmore Road, Harrington Street, Liberty Street or Tupper Street, Enmore, and
 - (c) the development will provide an appropriate transition in built form between new buildings and surrounding development.
- (3) The development control plan must provide for the following—
 - (a) design principles drawn from an analysis of the site and the site’s context,
 - (b) objectives for development on the land,
 - (c) distribution of land uses, including the function and landscaping of public, communal and private open space,
 - (d) measures to avoid and minimise land use conflicts between registered clubs and residential accommodation on the site,
 - (e) housing mixes,
 - (f) building envelopes and built form controls, including the following—
 - (i) the bulk, massing and modulation of buildings,
 - (ii) setbacks to the ground floor and upper storeys,
 - (iii) specified building storeys,
 - (g) heights of buildings that will provide an appropriate transition in built form to the surrounding development, including surrounding heritage items and conservation areas,
 - (h) encouraging sustainable transport, including increased use of public transport, walking and cycling,
 - (i) pedestrian movement through the site, including through publicly accessible open

- spaces and site links,
- (j) car parking and vehicle access arrangements,
 - (k) environmental impacts, including overshadowing, solar access and visual and acoustic privacy,
 - (l) the application of the principles of ecologically sustainable development, including principles of waste management and the avoidance of land contamination,
 - (m) landscaping, including landscaping providing—
 - (i) deep soil for trees and vegetation, and
 - (ii) soft landscaping spaces,
 - (n) improvements to publicly accessible open spaces,
 - (o) opportunities for passive surveillance of publicly accessible open spaces.

Part 7 Dulwich Grove land

7.1 Definitions

In this Part—

Block A means Lots 1-4, DP 542147.

Block B means—

- (a) Lots 1 and 2, DP 540366, and
- (b) Lots 1-3 and 5-7, DP 236603.

Dulwich Grove land means the land identified as “Area 14” on the [Key Sites Map](#).

7.2 Height of buildings on Dulwich Grove land

- (1) The maximum building height for a building on Dulwich Grove land is specified in the following table—

Part of Dulwich Grove land	Maximum building height
Lot 14, Section 4, DP 932 Lot 4, DP 540366	9.5m
Lots 1-4, DP 542147 Lot 1, DP 540366 Lot 3, DP 236603	17m
Lot 2, DP 540366 Lot 7, DP 236603	20m

Lots 1 and 2, DP 236603	29m
Lots 5 and 6, DP 236603	32m

- (2) Development consent must not be granted to development that results in a building on Dulwich Grove land exceeding the maximum building height specified in subclause (1) unless the building—
- (a) is within 1m of a part of Dulwich Grove land that has a greater maximum building height, and
 - (b) does not exceed the greater maximum building height, and
 - (c) does not result in unreasonable massing or impact the amenity of the surrounding area.
- (3) Development consent must not be granted to development that results in a building on land specified in Column 1 of the following table projecting higher than an incline plane that—
- (a) starts along the land's boundary with Hercules Street at the height above ground level (existing) specified in Column 2, and
 - (b) extends upwards in the direction of New Canterbury Road at the angle specified in Column 3.

Column 1	Column 2	Column 3
Part of Dulwich Grove land	Height at which incline plane starts	Angle of incline plane
Lot 14, Section 4, DP 932 Lot 4, DP 540366	7.5m	24°
Lot 2, DP 540366 Lot 7, DP 236603	15m	20°
Lots 5 and 6, DP 236603	20m	35°

- (4) Development consent must not be granted to development that results in a building within 7.5m of New Canterbury Road on Dulwich Grove land exceeding a building height of 17m.

7.3 Floor space ratio on Dulwich Grove land

- (1) The maximum floor space ratio for a building on Dulwich Grove land is specified in the following table—

Part of Dulwich Grove land	Maximum floor space ratio
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Lot 14, Section 4, DP 932 Lot 4, DP 540366	0.95:1
Lots 1 and 2, DP 540366 Lots 3 and 7, DP 236603	1.6:1
Lot 1-4, DP 542147	3:1
Lots 1, 2, 5 and 6, DP 236603	3.3:1

- (2) Development consent must not be granted to development that results in a building on Block A exceeding a floor space ratio of 0.95:1 unless at least 300m² of the gross floor area of all buildings on Block A are used for the following purposes—
 - (a) commercial premises,
 - (b) light industries.
- (3) Development consent must not be granted to development that results in a building on Block B exceeding a floor space ratio of 0.95:1 unless at least 1,100m² of the gross floor area of all buildings on Block B are used for the following purposes—
 - (a) commercial premises,
 - (b) light industries.

7.4 Additional permitted uses for Dulwich Grove land

- (1) Development for the following purposes is permitted with development consent on Dulwich Grove land—
 - (a) residential flat buildings,
 - (b) retail premises,
 - (c) shop top housing.
- (2) Development consent must not be granted under this clause to development that results in the ground floor of a building with frontage to New Canterbury Road being used for the purposes of residential accommodation.
- (3) Development consent must not be granted under this clause to development on Block A unless Block A is consolidated into a single lot.
- (4) Development consent must not be granted under this clause to development on Block B unless Block B—
 - (a) is consolidated into a single lot, and
 - (b) has, at the completion of the development, a landscaped area at least 6m wide,

including a pedestrian and cycle path, along the entire length of Block B's boundary with the adjoining light rail corridor.

7.5 Development control plan for Dulwich Grove land

- (1) Development consent must not be granted to development on Dulwich Grove land unless a development control plan that provides for the matters specified in subclause (2) applies to the land.
- (2) The development control plan must provide for all of the following—
 - (a) design principles drawn from an analysis of the site and its context,
 - (b) active street frontages,
 - (c) landscaped areas and public open spaces, including a public forecourt, next to the adjoining light rail corridor and Dulwich Grove light rail stop,
 - (d) distribution of land uses, including open space, and its function and landscaping,
 - (e) building envelopes and built form controls, including the following—
 - (i) bulk, massing and modulation of buildings,
 - (ii) setbacks to the ground floor and upper storeys,
 - (iii) specified storeys,
 - (f) housing mixes, including affordable and adaptable housing,
 - (g) vehicular access from Hercules Street,
 - (h) vehicle arrangements, considering the site's proximity to Dulwich Hill Public School,
 - (i) encouraging sustainable transport, including increased use of public transport, walking and cycling, and appropriate car parking,
 - (j) provision of central communal open space at ground floor of the site,
 - (k) improvements to the public domain and opportunities for passive surveillance of the public domain, including pedestrian movement to and from Dulwich Grove light rail stop,
 - (l) the application of the principles of ecologically sustainable development,
 - (m) environmental impacts, including overshadowing and solar access and visual and acoustic privacy,
 - (n) impacts of the built form on Dulwich Hill Public School, including overshadowing of

its playground,

(o) measures to minimise land use conflict between residential uses and—

(i) employment uses on or near the site, including light industrial uses, and

(ii) the operation of the Greek Orthodox Church at 28 Hercules Street.

(3) This clause does not apply to development of a minor nature if the consent authority is satisfied the development is consistent with the objectives of the zone in which the land is located.

7.6 Repeal and savings

(1) This Part is repealed at the end of 30 September 2027.

(2) This Part continues to apply, despite its repeal, to a development application in relation to Dulwich Grove land that is made but not finally determined before 30 September 2027.

Part 8 206 Parramatta Road and 122-128 and 130 Pyrmont Bridge Road, Camperdown

8.1 Land to which part applies

This part applies to the following land in Camperdown, identified as “Area M” on the [Key Sites Map](#)—

(a) Lot 1, DP 539271, 206 Parramatta Road,

(b) Lots 3-6 and 12, Section 1, DP 976387, 122-128 Pyrmont Bridge Road,

(c) Lot 100, DP 1101482, 130 Pyrmont Bridge Road.

8.2 Objective

The objective of this part is to encourage health, education and cultural land uses in the Camperdown-Ultimo Collaboration Area.

8.3 Development controls

(1) Development consent must not be granted to development on land to which this part applies unless the consent authority is satisfied of the following—

(a) the land is consolidated into a single lot,

(b) at least 75% of the gross floor area of a building resulting from the development will be used for one or more of the following purposes—

(i) creative industries,

- (ii) educational establishments,
 - (iii) health services facilities,
 - (iv) high technology industries,
 - (v) office premises associated with a purpose specified in subparagraphs (i)–(iv),
 - (c) the development will include showers, change rooms, lockers and bicycle storage areas,
 - (d) the parts of a building resulting from the development that face Mathieson Street, Parramatta Road and Pyrmont Bridge Road will have active street frontages.
- (2) Development consent must not be granted to development on land to which this part applies unless the consent authority has considered the impact of the development on vehicular traffic on Cahill Lane, Cahill Street, Gordon Street, Mathieson Street, Parramatta Road, Pyrmont Bridge Road and Water Street.

8.4 Development involving tourist and visitor accommodation and retail premises

- (1) Development for the following purposes is prohibited on land to which this part applies—
- (a) hotel or motel accommodation,
 - (b) serviced apartments,
 - (c) office premises, other than office premises associated with one or more of the following purposes—
 - (i) creative industries,
 - (ii) educational establishments,
 - (iii) health services facilities,
 - (iv) high technology industries.
- (2) Development for the purposes of retail premises is permitted with development consent on land to which this part applies only if the retail premises will be—
- (a) part of mixed use development, and
 - (b) located only on the ground floor.

8.5 Development control plan

- (1) Development consent must not be granted to development on land to which this part applies unless a development control plan that complies with subclause (2) has been

prepared for, or applies to, the land.

- (2) The development control plan must provide for the following—
- (a) design principles drawn from an analysis of the site and its context,
 - (b) the objectives for development on the land,
 - (c) building envelopes and built form controls, including the following—
 - (i) the bulk, massing and modulation of buildings,
 - (ii) setbacks to the ground floor and upper storeys,
 - (iii) specified building storeys,
 - (d) the heights of buildings that will provide an appropriate transition in built form to the surrounding development,
 - (e) encouraging sustainable transport, including increased use of public transport, walking and cycling,
 - (f) appropriate car parking and vehicle access arrangements,
 - (g) sustainability measures,
 - (h) environmental impacts, including overshadowing and solar access and visual and acoustic privacy,
 - (i) the principles of ecologically sustainable development, including waste management and land contamination,
 - (j) landscaping, including landscaping providing—
 - (i) deep soil for trees and vegetation, and
 - (ii) soft landscaping spaces,
 - (k) improvements to the public domain.

8.6 (Repealed)

Schedule 1 Additional permitted uses

(Clause 2.5)

1 Use of certain land at 1-5 Chester Street, Annandale

- (1) This clause applies to Lot 11, DP 499846, 1-5 Chester Street, Annandale, identified as “1” on the [Additional Permitted Uses Map](#).
- (2) Development for the purposes of business premises used for a business in the

biomedical, arts, technology, production or design sector is permitted with development consent.

- (3) Development for the purposes of boarding houses used for student accommodation is permitted with development consent.

2 Use of certain land at Old Canterbury Road, Ashfield and Hurlstone Park, Queen Street, Ashfield and Watkin Street, Hurlstone Park

- (1) This clause applies to the following land identified as “2” on the [Additional Permitted Uses Map](#)—

- (a) Lot 11, DP 4170, 298 Old Canterbury Road, Ashfield,
- (b) Lot 12, DP 4170, 300 Old Canterbury Road, Ashfield,
- (c) Lot 13, DP 4170, 302 Old Canterbury Road, Ashfield,
- (d) Lot 22, DP 4170, 304–306 Old Canterbury Road, Ashfield,
- (e) Lot 2, DP 788621, 308 Old Canterbury Road, Ashfield,
- (f) Lot 24, DP 4170, 310 Old Canterbury Road and part of Griffiths Street, Ashfield,
- (g) Lot 1, DP 302900, Lot 31, DP 667463 and Lot 32, DP 4170, 314 Old Canterbury Road, Ashfield,
- (h) Lot 34, DP 4170, 322 Old Canterbury Road, Ashfield,
- (i) Lot 36, DP 4170, 324 Old Canterbury Road, Ashfield,
- (j) Lot 38, DP 4170, 326 Old Canterbury Road, Ashfield,
- (k) Lot 40, DP 4170, 328 Old Canterbury Road, Ashfield,
- (l) Lot 42, DP 4170, 330 Old Canterbury Road, Ashfield,
- (m) Lot B, DP 412044, 332 Old Canterbury Road, Ashfield,
- (n) Lot A, DP 412044, 304 Queen Street, Ashfield,
- (o) Lot 1, DP 128322, 306 Queen Street, Ashfield,
- (p) Lots A and B, DP 375136, 342 Old Canterbury Road and part of Queen Street, Ashfield,
- (q) SP 82192, 350 Old Canterbury Road, Ashfield,
- (r) Lot 23, DP 1061215, 352 Old Canterbury Road, Ashfield,
- (s) Lot 2, DP 667262, 354 Old Canterbury Road, Ashfield,

- (t) Lot 1, Section 4, DP 1078, 356 Old Canterbury Road and part of Watkin Street, Ashfield,
- (u) Lot B, DP 339754, 2 Watkin Street, Hurlstone Park,
- (v) Lot A, DP 339754, 2a Watkin Street, Hurlstone Park,
- (w) Lots 6–8, Section 1, DP 1078, 366 Old Canterbury Road, Hurlstone Park,
- (x) Lots 4 and 5, Section 1, DP 1078, 382 Old Canterbury Road, Hurlstone Park,
- (y) Lot 3, Section 1, DP 1078 and Part Lot 18, Section 1, DP 1078, part of 386 Old Canterbury Road, Hurlstone Park,
- (z) Lot 1, DP 651258, 388 Old Canterbury Road, Hurlstone Park,
- (za) Lots 1 and 2, DP 226453, 390 Old Canterbury Road, Hurlstone Park.

- (2) Development for the purposes of shop top housing is permitted with development consent.

3 Use of certain land at 2-6 Cavill Avenue, Ashfield

- (1) This clause applies to Lot 17, DP 168456 and Lot 101, DP 234926, 2-6 Cavill Avenue, Ashfield, identified as “3” on the [Additional Permitted Uses Map](#).
- (2) Development for the purposes of public or private access roads is permitted with development consent if the road is used in connection with other development permissible on land to which the road gives access.

4 Use of certain land at 110 Frederick Street, Ashfield

- (1) This clause applies to Lot A, DP 338677, 110 Frederick Street, Ashfield, identified as “4” on the [Additional Permitted Uses Map](#).
- (2) Development for the purposes of business premises is permitted with development consent.

5 Use of certain land at 36-38 Holden Street, Ashfield

- (1) This clause applies to Lot 10, Section 1, DP 820, 36-38 Holden Street, Ashfield, identified as “5” on the [Additional Permitted Uses Map](#).
- (2) Development for the purposes of business premises is permitted with development consent.

6 Use of certain land at 75 Milton Street, Ashfield

- (1) This clause applies to Lot 31, DP 707858, 75 Milton Street, Ashfield, identified as “6” on the [Additional Permitted Uses Map](#).

- (2) Development for the purposes of residential flat buildings is permitted with development consent.

7 Use of certain land at 69 Milton Street, Ashfield

- (1) This clause applies to Lot 11, DP 730876, 69 Milton Street, Ashfield, identified as “7” on the [Additional Permitted Uses Map](#).
- (2) Development for the purposes of residential flat buildings is permitted with development consent.

8 Use of certain land at 22 and 26 Georges River Road, Croydon Park

- (1) This clause applies to Lot 1, DP 566070 and Lot 22, DP 847, 22 and 26 Georges River Road, Croydon Park, identified as “8” on the [Additional Permitted Uses Map](#).
- (2) Development for the purposes of business premises is permitted with development consent.

9 Use of certain land at 55-63 Smith Street, Summer Hill

- (1) This clause applies to Lot 13, Section 1, DP 560, Lot 1, DP 796910 and Lot 1, DP 905473, 55-63 Smith Street, Summer Hill, identified as “9” on the [Additional Permitted Uses Map](#).
- (2) Development for the following purposes is permitted with development consent—
 - (a) business premises,
 - (b) office premises,
 - (c) recreation facilities (indoor),
 - (d) self-storage units.

10 Use of certain land at Buchanan and Reynolds Streets, Balmain

- (1) This clause applies to Lots 85-93 and 126-145, SP 65243, Buchanan and Reynolds Streets, identified as “10” on the [Additional Permitted Uses Map](#).
- (2) Development for the following purposes is permitted with development consent—
 - (a) business premises,
 - (b) kiosks,
 - (c) office premises,
 - (d) recreation facilities (indoor),
 - (e) restaurants or cafes,

- (f) roadside stalls,
- (g) shops.

11 Use of certain land at Gladstone Park, Darvall Street, Balmain

- (1) This clause applies to part of Lot 1, DP 724348, Gladstone Park, Darvall Street, Balmain, identified as “11” on the [Additional Permitted Uses Map](#).
- (2) Development for the purposes of registered clubs is permitted with development consent.

12 Use of certain land at 3-7 Rosebery Place, Balmain

- (1) This clause applies to Lots 1-20, SP 60158, SP 60159 and Lots 5-9, SP 62009, 3-7 Rosebery Place, Balmain, identified as “12” on the [Additional Permitted Uses Map](#).
- (2) Development for the following purposes is permitted with development consent—
 - (a) business premises,
 - (b) kiosks,
 - (c) office premises,
 - (d) restaurants or cafes,
 - (e) roadside stalls,
 - (f) shops.

13 Use of certain land at 1 Canal Road, Leichhardt

- (1) This clause applies to Lot 103, DP 826775, 1 Canal Road, Leichhardt, identified as “13” on the [Additional Permitted Uses Map](#).
- (2) Development for the following purposes is permitted with development consent—
 - (a) building identification signs,
 - (b) business identification signs,
 - (c) entertainment facilities,
 - (d) industrial retail outlets,
 - (e) information and education facilities,
 - (f) light industries,
 - (g) markets,

- (h) restaurants or cafes,
- (i) take away food and drink premises.
- (3) Development for the purposes of office premises is permitted with development consent if—
 - (a) no more than 20% of the gross floor area of the building is used for office premises, and
 - (b) the gross floor area of a single premises used for office premises does not exceed 300m².

14 Use of certain land at 91 Canal Road, Leichhardt

- (1) This clause applies to Lot 1, DP 1070825, 91 Canal Road, Leichhardt, identified as “14” on the [Additional Permitted Uses Map](#).
- (2) Development for the following purposes is permitted with development consent—
 - (a) building identification signs,
 - (b) entertainment facilities,
 - (c) industrial retail outlets,
 - (d) information and education facilities,
 - (e) light industries,
 - (f) markets,
 - (g) restaurants or cafes,
 - (h) take away food and drink premises.
- (3) Development for the purposes of office premises is permitted with development consent if—
 - (a) no more than 20% of the gross floor area of the building is used for office premises, and
 - (b) the gross floor area of a single premises used for office premises does not exceed 300m².

15 Use of certain land at 237 Marion Street, Leichhardt

- (1) This clause applies to Lot 121, DP 1106716, 237 Marion Street, Leichhardt, identified as “15” on the [Additional Permitted Uses Map](#).
- (2) Development for the purposes of seniors housing is permitted with development